

23STCV08136 23STCV08136

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-18
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Case Number: 23STCV08136 Hearing Date: August 18, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

VARINA GORETTI CARVAJAL,

Plaintiff,

vs.

LOS ANGELES UNIFIED SCHOOL DISTRICT,

Defendant.

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CASE NO.: 23STCV08136

[TENTATIVE] ORDER CONTINUING HEARINGS

Dept. 506

8:30 a.m.

August 18, 2026

On

June 10, 2024, the Court granted Defendant's motion to stay proceedings pending the Worker's Compensation Appeals Board ("WCAB")'s determination of whether the WCAB or the Superior Court has exclusive jurisdiction.

On

April 29, 2026, the WCAB found that "jurisdiction over this matter is not exclusively with the WCAB if it is decided that this case meets any of the exceptions to the exclusive remedy rule, the determination of which is beyond the scope of WCAB authority and rests with the Superior Court."

On

July 17, 2026, Plaintiff filed a motion for relief from stay and a motion for leave to file a third amended complaint.

Defendant

opposes both motions because, inter alia, Plaintiff has not shown that this case meets an exception and should proceed in this Court.

Accordingly,

the Court orders supplemental briefing about whether this case meets any of the exceptions to the exclusive remedy rule.

The
hearings are CONTINUED to November 10, 2026 at 8:30 a.m.

Simultaneous
briefs shall be filed and served no later than October 27, 2026.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 18th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court